



THIS DEED OF ASSIGNMENT is made the **FOURTH DAY OF JULY** Two Thousand and **TWENTY-FIVE** **BETWEEN KENPORT LOGISTICS LIMITED**, a company incorporated in Zambia and having its registered office at **KITWE** (hereinafter referred to as **"the Assignor"**) of the one part and **FUNDIT CAPITAL SOLUTIONS LIMITED** a company incorporated in Zambia and having its registered office at Kitwe (hereinafter referred to as **"the Assignee"**) of the other part.

WHEREAS

1. **ZAMBIAN BREWERIES PLC** (hereinafter referred to as **"the Debtor"**) is indebted to the Assignor for the principal amount (hereinafter referred to as **"the Receivables"**) pursuant to the contract or order(s) hereinafter mentioned. The Receivables and the contract or order(s) are more particularly described in the First Schedule hereto.
2. The Assignee has agreed to make available to the Assignor an Invoice discounting facility (hereinafter referred to as **"the Facility"**) upon and subject to the terms and conditions contained and referred to in a facility letter between the Assignee and the Assignor dated the **FOURTH day of JULY** Two Thousand and **TWENTY-FIVE** (hereinafter referred to as **"the Facility Letter"**).
3. It is a condition of the Facility that the Assignor's obligations under the Facility be secured upon and subject to the terms and conditions contained in this deed.

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4. The Assignee wishes to purchase and the Assignor wishes to grant, assign, transfer and set over unto the Assignee its entire right, title and interest in and to the Receivables upon the terms and conditions contained in this agreement. **NOW THIS DEED WITNESSES** as follows:

1. Assignment and re-assignment

In pursuance of the said Facility and in consideration of the sum of **ZMW2,110,000(TWO MILLION ONE HUNDRED AND TEN THOUSAND Kwacha Only)** now paid by the Assignee to the Assignor (the receipt of which sum the Assignor hereby acknowledges) the Assignor as Beneficial Owner **HEREBY ASSIGNS** absolutely as a first priority assignment unto the Assignee with full title guarantee to all its rights, title and interest in and to the Receivables as a security for the payment or discharge to the Assignee of the liabilities and obligations owed by it to the Assignee under the terms and conditions of the Facility Letter hereinbefore referred to.

2. Covenants

- 2.1 The Assignor **HEREBY COVENANTS** with the Assignee to give notice of this Assignment forthwith to the Debtor and to procure receipt of the acknowledgement of service of such notice from the Debtor. The form of this notice and acknowledgement of service of same shall take is in the Second Schedule hereto.
- 2.2 The Assignor **HEREBY COVENANTS** with the Assignee that the Receivables due to it by the Debtor as the sums of money hereby assigned are still due and owing in full to the Assignor and shall be paid into a specific **Assignee** account as follows:

Bank Name	:	Indo Zambia Bank
Account Name	:	Fundit Capital Solutions Limited
Account Number	:	0342031000121
Branch Name	:	Longacres
Branch Sort Code	:	090034
Swift Code	:	INZAZMLX

- 2.3 The Assignor may not without the prior written consent of the Assignee:

- 2.3.1 Amend or seek to amend or agree to any amendment of any of the terms or conditions of the contract or order(s),

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- 2.3.2 Release the Debtor from the whole or any part of its obligations under or pursuant to the contract or order(s) or agree to any modification or variation of them or grant any time or other indulgence to such Debtor,
 - 2.3.3 Accept any breach or default by the Debtor under any of the contract or order(s) as repudiatory,
 - 2.3.4 Release, vary, reduce, compound or otherwise deal with any Receivables due it by virtue of the contract or order(s),
 - 2.3.5 Rescind, cancel or terminate any of the Receivables due it by the Debtors under the contract or order(s) or accept any breach of it or default under it as repudiatory,
 - 2.3.6 Further assign or otherwise create or permit to subsist any security interest over the Receivables,
 - 2.3.7 Sell or agree to sell, transfer or otherwise dispose of the benefit of the Receivables, or
 - 2.3.8 Take or omit to take any action the taking or omission of which would or might impair the interests of the Assignee in the Receivables.
- 2.4 The Assignor shall forthwith:
- 2.4.1 Provide the Assignee with any information it requests about the Receivables or any related matter specific to the transaction, and
 - 2.4.2 Generally provide the Assignee and its officers with full and prompt co-operation and assistance.

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3. Representations and warranties

3.1 The Assignor represents and warrants to the Assignee that:

- 3.1.1 The Assignor is the sole, lawful and beneficial owner and/or person entitled to the benefit of the Receivables and shall ensure that the Receivables remain at all times free from any security interest,
- 3.1.2 The Receivables are or will be due and owing to the Assignor and are not subject to any right of set-off, counterclaim or similar right,
- 3.1.3 The Receivables are, or will be when they come into existence, assignable at any time by the Assignor to the Assignee without the consent of any third party, and
- 3.1.4 It has not sold, transferred, disposed of, assigned or otherwise created a security interest over, nor has it agreed to sell, transfer, assign or otherwise create a security interest over, the Receivables or any interest in them.

4. Money received by Assignor

Any money received by the Assignor which by virtue of this deed is due and payable to the Assignee must be paid to a deposit account with the Assignee's Bank, or any other bank designated for this purpose by the Assignee, in full discharge of the Assignor's obligations to the Assignee. Money so received by the Assignor shall at all times inure to the benefit of the Assignee and the Assignor shall obtain no rights over the same.

5. Remedies cumulative; waivers and amendments

- 5.1 No failure or delay on the part of the Assignee to exercise any power, right or remedy under this deed is to operate as a waiver of it, and no single or partial exercise by the Assignee of any power, right or remedy is to preclude any other or further exercise of it or the exercise of any other power, right or remedy.
- 5.2 The remedies provided in this deed are cumulative and are not exclusive of any remedies provided by law. No waiver is to be effective or binding on the Assignee unless given in writing by an authorised officer of the Assignee.
- 5.3 The terms of this deed may be amended only by an instrument in writing signed by an authorised officer of the Assignee and by an authorised signatory on behalf of the Assignor.

6. Successors and assigns

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- 6.1 This deed is to be binding on the Assignor and its successor(s) but the Assignor may not assign or transfer all or any of its rights or obligations under this deed.
- 6.2 The Assignee may assign all or any part of its rights or benefits under this deed without the consent of the Assignor and, after assignment, relevant references in this deed to 'the Assignee', wherever used in this deed, are to include any assignee of the Assignee and every successor in title of any such assignee or of the Assignee.
- 6.3 The Assignee may disclose to a potential assignee or transferee or to any other person who may propose entering into contractual relations with the Assignee in relation to this deed such information about the Assignor as the Assignee considers appropriate.

7. Law and jurisdiction

The agreement and the relationship between the parties shall be governed and construed by the Laws of Zambia and both parties hereby consent to the said jurisdiction (excluding conflict of laws principles)

IN WITNESS whereof the Parties hereto have caused their Common Seals to be hereunto affixed the day and year first before written.

THE FIRST SCHEDULE hereinbefore referred to

Off-taker	Invoice Number	Invoice Value	Invoice Date	Payment Date
Zambian Breweries	Refer to the Schedule attached	Refer to the schedule attached		30 days from the date of Invoicing

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THE SECOND SCHEDULE hereinbefore referred to;

4th July 2025.

Accounts payable
Zambian Breweries Coppermine plc
KITWE

Ref: Assignment of Receivables

We hereby give you notice by an Assignment of Receivable, Fixed Charge and all monies being proceeds from the invoices described above, issued to yourselves on the respective dates described. Following an agreement made between ourselves, KENPORT LOGISTICS LIMITED and FUNDIT CAPITAL SOLUTIONS LIMITED LIMITED. We hereby irrevocably authorise and instruct you to: -

- a) Pay directly to the FUNDIT CAPITAL SOLUTIONS LIMITED all moneys due under the Contract into the abovementioned FNB or such other account(s) in accordance with the FUNDIT CAPITAL SOLUTIONS LIMITED's written instructions.
- b) Disclose to the FUNDIT CAPITAL SOLUTIONS LIMITED (or its assignees) without any reference to or further authority from us such information relating to the Invoice as the FUNDIT CAPITAL SOLUTIONS LIMITED (or its assignees) may at any time and from time-to-time request; and
- c) Comply with the terms of any written notice or instructions from the Bank (or its assignees) in any way relating to, or purporting to relate to, the Contract, without any reference to or further authority from us.

We shall remain liable to perform all our obligations under the Contract and FUNDIT CAPITAL SOLUTIONS LIMITED shall not assume any obligation to perform the obligations imposed on us thereby. We have agreed not to amend or waive any provision of or terminate the any terms without the prior written consent of the FUNDIT CAPITAL SOLUTIONS LIMITED.

This authority and instruction are irrevocable and shall not be cancelled or varied without the prior written consent of FUNDIT CAPITAL SOLUTIONS LIMITED

Yours faithfully,

DIRECTOR

KENPORT LOGISTICS LIMITED

Plot 0028 Chandwe Musonda Rd, Light Industrial Area, Lusaka, Zambia

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ACKNOWLEDGEMENT OF ASSIGNMENT

Dated/...../.....

Dear Sirs,

We acknowledge receipt of the Notice of Assignment of Receivables from **KENPORT LOGISTICS LIMITED** to **FUNDIT CAPITAL SOLUTIONS LIMITED** dated/...../..... of which the above is a copy. We confirm that we have not received any prior notice of assignment in relation to the **KENPORT LOGISTICS LIMITED**. We hereby confirm that all monies payable by us shall be paid into the account set out in the Notice of Assignment of Receivables.

Signed:

for and on behalf of
Zambian Breweries Copper mine Plc.



THE COMMON SEAL of **KENPORT LOGISTICS LIMITED** was)

Hereunto affixed in the presence of:

DIRECTOR: _____

A handwritten signature in black ink, appearing to be 'A. Manjimele', written over a horizontal line.

ADAM
MANJIMELE.

SECRETARY: _____

A second handwritten signature in black ink, identical to the one above, written over a horizontal line.

THE COMMON SEAL of **FUNDIT CAPITAL SOLUTIONS LIMITED** was)

Hereunto affixed in the presence of:)

DIRECTOR: _____

SECRETARY: _____

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